

BROCK v CALAVERAS COUNTY WATER DISTRICT

25CV47849

PLAINTIFFS COUNSEL'S MOTIONS TO BE RELIEVED

Gregory P. Wayland, Esq and Corsaut & Wayland, LLP seek to be relieved as counsel of record for Plaintiffs Jerry D. Brock and Dorris G. Brock ("Plaintiffs").

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (*Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915.) California Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (Civil Form MC-0510); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure § 284(2) is brought instead of filing a consent under section 284(1) (Civil form (MC052)); (3) service of the notice of motion and motion, the declaration, and the proposed order on the client and on all other parties who have appeared in the case; and (4) a proposed order relieving counsel (Civil form (MC-053)). The Court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules Court, rule 3.1362(e).)

Attorney Gregory P. Wayland ("Wayland") advises that his clients, Plaintiffs are in breach their agreement for legal services and that the relationship between counsel and clients means that he is unable to provide effective counsel. Wayland has informed Plaintiffs of his intention to withdraw as counsel via email and has served the instant motion at Plaintiffs' address with return receipt requested. Wayland has confirmed the Plaintiffs' address using title records and has also attempted to phone the Plaintiffs but he has been unable to reach them or to leave a voicemail.

Counsel's Declarations comply with the statutory requirements. Therefore, the Motions to be Relieved are **GRANTED**. However, Counsel did not file the mandatory proposed order on Civil Form MC-053 with all hearing dates currently scheduled in this matter. Accordingly moving counsel is ordered to file the appropriate order within five (5) days of this ruling. The Court will delay the effective date of the order until proof of service of a copy of the signed order on Plaintiff has been filed with the Court.

The clerk shall provide notice of this ruling to the parties forthwith. Counsel to submit formal Orders in conformity with this Ruling within five (5) days.

10:00 a.m. Calendar

MATTER OF PRESTON

20PR8275

PLAINTIFF'S MOTION TO COMPEL DEPONENT TO APPEAR

Now before the Court is a Motion to Compel Deposition of attorney Claudia Y. Shafer ("Shafer") brought by Petitioner Chad Preston, Successor Administrator ("Petitioner.") Petitioner is represented by attorney Carrie M. McKernan. ("McKernan").

I. Relevant Background

Shafer was the former counsel for the Estate of Gregg Hall Preston ("Estate") and the Estate's former administrator Scott Preston. On February 13, 2025, Shafer was removed by this Court via Minute Order, as counsel from the Estate, along with Scott as the administrator; however, she remained as counsel for Scott Preston until the Court granted her motion to be relieved on October 13, 2025. Shafer is not a party to this action.

On February 10, 2026, Shafer appeared for an in-person deposition at the McKernan law firm offices. (Declaration of Carrie M. McKernan ("McKernan Decl.") ¶ 3.) Shafer participated in the deposition for approximately one hour before she abruptly terminated the deposition and left. (*Ibid.*) Prior to her abrupt termination and exit, Shafer stipulated on the record to return on Wednesday, February 25, 2026, from 9:00 a.m. to 12:00 p.m. (*Ibid.*) Shafer started the deposition without making any objections, other than to question the length of the deposition and to assert her need to leave early in order to take medications. (*Ibid.*, Ex. B.)

On February 11, 2026, McKernan's office served Shafer, by email, with a Notice of Taking Deposition (Part Two) formalizing the agreed date of February 25, 2026, at 9:00 a.m., and updated Requests for Production Nos. 10-11. (McKernan Decl. ¶11, Ex. C.) On the morning of the deposition, McKernan's office sent a reminder to Shafer about the deposition and Requests for Production. (*Id.* ¶ 4, Ex. D.) On the afternoon of February 23, 2026 (two days before the deposition was scheduled), Shafer emailed McKernan's office stating that there was no legal authority to depose her and she would not appear at the deposition, nor produce the documents, absent a court order. (*Id.* ¶ 5, Ex. E.) Shafer did not appear for the deposition and her absence was noted on the record. (*Id.* ¶ 6.)

Between March 23, 2026, and April 3, 2026, McKernan made multiple attempts to engage in meet and confer efforts. (McKernan Decl. ¶¶7, 8.) Shafer failed to answer the phone call at an agreed-upon time and further failed to respond to six additional phone calls. (*Ibid.*)